

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable David A. Silberman
800 North Humboldt Street, San Mateo, CA 94401
Department 11, Courtroom G
Monday, August 10 2026 at 2 pm

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing to the newly assigned department pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept11@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 964 0802 Password: 734616

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
02:00 PM	
24-CIV-04290	RAJESHWOR PANDEY VS. KIM MITCHELL
LINE 1	
RAJESHWOR PANDEY	SARAH SHAPERO
KIM MITCHELL	

PLAINTIFF/CROSS-DEFENDANT: RAJESHWOR PANDEY'S MOTION TO TRANSFER FUNDS

TENTATIVE RULING:

For the reasons stated below, the unopposed Motion to Transfer Funds (the "Motion") is DENIED as MOOT. Plaintiff's Request for Judicial Notice is GRANTED.

This case is related to San Mateo Case No. 23CIV05363. (See Notice of Related Case, filed October 29, 2025.) By this Motion, Plaintiff requests "an Order transferring the funds deposited into San Mateo County Case 24-CIV-04290 to San Mateo County Case 23-CIV-05363." (Notice of Motion, at p. 2:3-4.) The requested relief in the present motion has already been granted in the related action: "The Clerk of Court for the County of San Mateo, in the State of California, is directed to transfer the funds deposited in the Related Case 24-CIV-04290 into this action, Case 23-CIV-05363." (Order filed June 5, 2026 in Case No. 23CIV05363.)

The Motion is accordingly DENIED as MOOT.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

24-CIV-04948 GILBERTO SOLORZANO REYNAGA VS. JOSE LUIS CEJA CHAVEZ, ET AL.

LINE 2

GILBERTO SOLORZANO REYNAGA
JOSE LUIS CEJA CHAVEZ

KENNETH KLEEGER
NATHAN N. WANG

DEFENDANT/CROSS-COMPLAINANT: FLY TOWING LLC'S MOTION FOR LEAVE TO FILE CROSS-COMPLAINT

TENTATIVE RULING:

The Motion is DENIED as MOOT.

The Court notes that the Motion for Leave to File Cross-Complaint (the "Motion") filed on November 20, 2025, by Defendant Fly Towing LLC (hereinafter, "Defendant" unless another defendant is specified) stated that the above-entitled matter was set in Department 15. However, effective May 11, 2026, by order of the Presiding Judge pursuant to San Mateo County Superior Court Local Rule 3.200(a), this matter was reassigned for all purposes, including the instant hearing, to the Honorable David A. Silberman, Department 11, located at 800 North Humboldt Street, San Mateo, CA 94401, Courtroom G. (See Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].) While the motion should have been renoticed, there has been no prejudice and the error is waived. The Court recognizes that this case was reassigned twice since the motion was filed.

Background

Per allegations, Defendant Jacinto Villanueva Roslaes and Defendant negligently made a sudden left turn in front of Plaintiff's oncoming vehicle, causing Plaintiff to brake suddenly. Defendant Jose Luis Ceja Chavez negligently hit Plaintiff's vehicle from the rear, pushing it into Defendant Roslaes' vehicle, causing serious injuries and damages to Plaintiff.

However, the Cross-Complaint was filed with an appended Proof of Service on November 20, 2025 (concurrently with the Motion), and the Clerk issued a Summons to Defendant Chavez on March 4, 2026, though there is no record of the service of the Summons. The Court noted that an unsigned version of the Cross-Complaint bearing an earlier date and no file-stamp is attached to the Declaration of Michael E. Gallagher in Support of the Motion (the "Gallagher Declaration"). (Gallagher Decl., ¶ 9, & Exh. A.)

Defendant applied *ex parte* for an Order shortening time for the hearing of the Motion, which application the Court denied. (Order, filed on December 17, 2025.)

Through its Motion, Defendant seeks an Order granting it leave to file a Cross-Complaint against Defendant Chavez and Roe Defendants.

Governing Law

The governing statutes provide that:

A party against whom a cause of action has been asserted in a complaint or cross-complaint may file a cross-complaint setting forth either or both of the following:

(a) Any cause of action he has against any of the parties who filed the complaint or cross-complaint against him. Nothing in this subdivision authorizes the filing of a cross-complaint against the plaintiff in an action commenced under Title 7 (commencing with Section 1230.010) of Part 3.

(b) Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.

(Code Civ. Proc., § 428.10), and:

(a) A party shall file a cross-complaint **against any of the parties who filed the complaint** or cross-complaint **against him or her** before or at the same time as the answer to the complaint or cross-complaint.

(b) Any other cross-complaint may be filed at any time before the court has set a date for trial.

(c) A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action.

(*Id.*, § 428.50 (emphasis added).) Though Defendant filed an Answer on February 19, 2025, without the proposed Cross-Complaint having been filed therewith (*id.*, § 428.50, subd. (a)), the proposed Cross-Complaint names only Defendant Chavez as a Cross-Defendant. Thus, it falls within subdivisions (b) of both statutes, so that leave is not required (*id.*, § 428.50, subd. (c)). (*Bean v. City of Thousand Oaks* (2025) 114 Cal. App. 5th 775, 784, review denied (Dec. 30, 2025)).

The action thus proceeds with the Cross-Complaint of record that has already been filed.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CIV-03629 RICHARD FRESCHET VS. ALAN LIM, ET AL.

LINE 3

RICHARD FRESCHET
ALAN LIM

BRIAN J. MCSWEENEY
GEOFFREY W. STEELE

PLAINTIFF: RICHARD FRESCHET'S MOTION FOR ORDER ESTABLISHING ADMISSIONS BY DEFENDANTS: RX SOLAR INC. AND ALAN LIM AND FOR MONETARY SANCTIONS OF \$3,560

TENTATIVE RULING:

The court will exercise its discretion to consider the new evidence provided with the Supplemental Declaration of Ira Leshin. However, the motion is continued to September 14, 2026, so that defendant may review the evidence.

02:00 PM

25-CIV-06649 DOROTHY CARONNA VS. META PLATFORMS, INC.

LINE 4

DOROTHY CARONNA
META PLATFORMS, INC.

PRO PER
MICHELLE VISSER

DEFENDANT: META PLATFORMS, INC.'S DEMURRER TO AMENDED COMPLAINT

TENTATIVE RULING:

Defendant Meta Platforms, Inc.'s demurrer to Plaintiff's First Amended Complaint ("FAC") filed on October 31, 2025, for failure to state sufficient facts upon to constitute a cause of action pursuant to Code of Civil Procedure section 430.10, subdivision (e), is SUSTAINED WITHOUT LEAVE TO AMEND.

Initially, the court notes that defendant provided the improper address for the hearing because the matter was most recently reassigned on April 30, 2026, to the Honorable David A. Silberman, Department 11, effective May 11, 2026. Department 11 is located at the San Mateo Superior Court Central Branch Courthouse, Courtroom G, 800 North Humboldt Street, San Mateo, CA 94401. (See Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].) Because the matter has been reassigned three times in the less than one year since its inception, the Court finds the error understandable but notes the error for parties' clarification regarding hearing location and judicial officer. It is also of note that Defendant included the correct judge on the face of its reply but the wrong Department number.

Plaintiff is a former paying customer of Meta Platform services and alleges she was banned from the platform on June 2, 2025, for her alleged breach of terms of service. However, after she was banned, she continued to be billed in July, August, September and December 2025 for business ads. The FAC raises a cause of action for general negligence because Defendant Meta owed plaintiff a duty to stop charging her for services she was never going to get after being banned from their platform.

Defendant filed a demurred to the FAC on the grounds that it fails to state facts sufficient to constitute a cause of action pursuant to Code of Civil Procedure section 430.10 subdivision (e) because the cause of action fails to state a duty of care for a negligence claim and, additionally, the economic loss rule precludes this claim. Plaintiff opposes and contends that she is unable to file this action under breach of contract because she has been banned from accessing her account information.

"[I]t is well settled that a general demurrer admits the truth of all material factual allegations in the complaint [citation]; that the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]; and that plaintiff need only plead facts showing that he may be entitled to some relief [citation]." (*John's Grill, Inc. v. The Hartford Financial Services Group, Inc.* (2024) 16 Cal.5th 1003, 1013.) The "demurrer tests the sufficiency of the plaintiff's complaint, *i.e.*, whether it states facts sufficient to constitute a cause of action upon which relief may be based." (*Villarroel v. Recology, Inc.* (2023) 97 Cal.App.5th 762, 772.) Thus, a court reviewing a demurrer accepts as true the facts alleged in the complaint as well as those of which it may take judicial notice (*Id.* at 1008), but does not "assume the truth of contentions, deductions or conclusions of law." (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.)

Plaintiff's claim arises solely from the service contract she had with Defendant Meta.

California courts have long held that a breach of contract, standing alone, does not give rise to tort liability. As the California Supreme Court stated in *Erlich v. Menezes* (1999) 21 Cal. 4th 543, 981, conduct amounting to a breach of contract becomes tortious only when it also violates a duty independent of the contract arising from principles of tort law. The foundational principle is that an omission to perform a contract obligation is never a tort unless that omission is also an omission of a legal duty. The California Supreme Court made this principle clear in *Freeman & Mills, Inc. v. Belcher Oil Co.* (1995) 11 Cal. 4th 85, which overruled the earlier *Seaman's Direct Buying Service* decision and established a general rule precluding tort recovery for non-insurance commercial contract breach in the absence of a violation of an independent duty arising from principles of tort law. Courts will generally enforce a breach of a contractual promise through contract law, except when the actions constituting the breach violate a social policy that merits the imposition of tort remedies.

The economic loss rule is the primary doctrinal mechanism that bars tort claims in contract disputes. As explained by the California Supreme Court in *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal. 5th 905, 922, there is generally no recovery in tort for negligently inflicted purely economic losses. *See also Robinson Helicopter Co. v. Dana Corp.* (2004) 34 Cal. 4th 979, 988. In *Robinson Helicopter*, the California Supreme Court articulated the rule succinctly: "[t]he economic loss rule requires a purchaser to recover in contract for purely economic loss due to disappointed expectations, unless he can demonstrate harm above and beyond a broken contractual promise." (*Id.*)

As Defendant argues, Plaintiff has not alleged any facts establishing a duty to her outside of a contractual one or any losses other than economic ones related to her contract.

Accordingly, defendant's demurrer is SUSTAINED.

Leave to Amend

"It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action... But the court should deny leave to amend where the facts are not in dispute and no liability exists under substantive law... It is not up to the judge to figure out how the complaint can be amended to state a cause of action. Rather, the burden is on plaintiff to show *in what manner* plaintiff can amend the complaint, and *how* that amendment will change the legal effect of the pleading." Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-A (citations omitted).

While opposing the demurrer, Plaintiff has not asked for leave to amend and has failed to identify any facts that Plaintiff contends Plaintiff could allege and that would cure the legal defects in the Amended Complaint. Accordingly, leave to amend is DENIED.

However, if Plaintiff believes it is possible to address the deficiencies identified in this tentative, Plaintiff must contest the tentative and appear to explain in detail what facts Plaintiff can allege to cure. If Plaintiff does contest, Defendant should be prepared to address factually Plaintiff's assertion that she has been billed for service she does not want, i.e., whether that is happening and why.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CLJ-03993 JASEN FRANK MEYN VS. MGA INSURANCE COMPANY, INC (*Complaint Filed: 05/28/25*)
LINE 5

JASEN FRANK MEYN
MGA INSURANCE COMPANY, INC

PRO PER

PLAINTIFF: JASEN MEYN'S MOTION TO CONSOLIDATE ACTIONS (with 25CIV06981 - *Complaint Filed: 09/22/25*)

TENTATIVE RULING:

Plaintiff Jasen Frank Meyn's Motion to Consolidate Actions is DENIED without prejudice.

Plaintiff seeks to consolidate this limited civil matter (25CLJ03993), which is assigned to Department 11 with unlimited civil matter 25CIV06981, which is assigned to Department 4. Plaintiff indicates that the unlimited civil matter should be the dominant case.

But Plaintiff has not complied with California Rule of Court 3.350 in any manner, including but not limited to, failing to comply with subsection (a)(1)(C), which requires that the motion be filed in each case sought to be consolidated. The same rules apply to Plaintiff despite his pro per status. *Rappleyea v. Campbell* (1994) 8 Cal. 4th 975, 984–85 (“[M]ere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation.”).

Despite the two cases being more than one year old (in one case) and almost a year old (in the other case), Plaintiff has not yet successfully served them. Plaintiff has obligations to diligently prosecute his cases that he is not yet meeting.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. The Court will prepare the Order.

02:00 PM

26-CIV-00570 ELIZABETH BULJAN VS. ERIC YUAN, ET AL.

LINE 6

ELIZABETH BULJAN
ERIC YUAN

BLAIR KITTLE
RACHEL K. IVANOWSKY

DEFENDANT: DANIEL CHUNG, STEPHEN PAHI, CATHERINE ROBERTSON AND SPENCER FANE LLP'S MOTION TO STRIKE (SLAPP)

TENTATIVE RULING:

Defendants Daniel Chung, Stephen Pahl, Catherine Schlomann Robertson, and Spencer Fane LLP have filed a Special Motion to Strike ("anti-SLAPP motion") Plaintiff Elizabeth Buljan's Complaint for Malicious Prosecution.

Defendants' Special Motion to Strike Plaintiff's Complaint is DENIED.

Background

According to Plaintiff's Complaint, Defendants Eric Yuan and Sherry Yuan sued Ms. Buljan in 2023, through their alleged alter-ego, Defendant MarigoldYZP I LLC ("Marigold" and, collectively with the Yuans, "Marigold Defendants"), for over \$37,000,000.00 in an alleged breach-of-contract case, despite full knowledge that Ms. Buljan had never met the Yuans, Ms. Buljan had signed no contracts with the Yuans or related entities, and Ms. Buljan had nothing to do with the underlying facts alleged in their lawsuit. Knowing that Ms. Buljan was completely uninvolved in the underlying dispute, Eric and Sherry Yuan, through their lawyers and an LLC "MARIGOLDYZP I," maliciously prosecuted their lawsuit against Ms. Buljan for over two years, and stopped only when the court granted summary judgment for Ms. Buljan and entered judgment on January 8, 2026. (Complaint, ¶ 1)

The Complaint alleges that the Yuans prosecuted their lawsuit, allegedly a breach of contract case regarding an Atherton mega-mansion and future family home for the Yuans, against Ms. Buljan despite the Yuans' and their attorneys' knowledge that Ms. Buljan was not involved in any way with the real estate contract at issue in their case, but sued her purely because she was and is married to Pierre Buljan, who they alleged was involved. (*Id.*, ¶ 2.) In their respective depositions, both Eric Yuan and Sherry Yuan admitted that they had never met or communicated with Ms. Buljan and that the Yuans had never seen Ms. Buljan's name on any document pertaining to their property transaction. (*Id.*, ¶ 3.)

The Complaint alleges that despite knowing Ms. Buljan had nothing to do with their case prior to filing their lawsuit, and despite receiving confirmation in litigation from every other party that she was not involved, the Yuans continued to sue her for over \$37 million, forced her to endure hours of deposition, threatened her with harassing and ridiculous litigation demands including demanding access to her smart television, car back up cameras, and the nanny cameras in her children's rooms, and forced her to incur gargantuan sums in legal fees to defend against their malicious actions. (*Id.*, ¶ 4.)

The Complaint alleges that even though they knew such discovery would not produce any relevant information— because, again, both of the Yuans knew that Ms. Buljan was not involved in the

underlying allegations of their case before they filed it— during the litigation, the Yuans propounded 66 separate requests for production of documents on Ms. Buljan. (*Id.*, ¶ 5.)

The Complaint further alleges that the Yuans also instructed their attorney, Daniel Chung, to depose Ms. Buljan. During that deposition, Attorney Chung admitted 753 pages of irrelevant exhibits and questioned Ms. Buljan for more than 6 hours. In a primary line of questioning, Attorney Chung interrogated Ms. Buljan about every conceivable recording device in Ms. Buljan’s home, including, among other things, the nanny camera that records her granddaughter’s bedroom; their smart TV; and Ms. Buljan’s car back up camera. (*Id.*, ¶ 6.)

The Complaint alleges that Attorney Chung relentlessly pursued discovery related to these devices for several months, and after threatening Ms. Buljan with a motion to compel production of documents from her personal devices, forced the parties to attend an Informal Discovery Conference in October of 2024. (*Id.*, ¶ 7.) At the conclusion of that Conference, Commissioner Elliott issued a decision stating that Plaintiff’s line of questioning “approaches harassment of the witness” and concluded that any motion brought to access the devices in question would be meritless. (*Id.*, ¶¶ 8, 9.)

The Complaint alleges that the Yuans and their attorneys continued to prosecute their case against Ms. Buljan until forcibly stopped by the Court on January 8, 2026 in its final order granting summary judgment and unconditionally dismissing Ms. Buljan from the case. (*Id.*, ¶ 10, Ex. A, MarigoldYZP I LLC v. 88 Tuscaloosa Ave LLC, et al., 23-CIV-04063, Judgement (Jan. 8, 2026).)

Summarizing the relevant procedural history: On August 29, 2023, Marigold filed its complaint against Ms. Buljan. On November 14, 2023, Plaintiff and her husband, Pierre Buljan, also a defendant in the underlying action, filed a Cross-Complaint in that action. (Robertson Decl., ¶ 2.) On August 20, 2024, counsel for Ms. Buljan in the underlying action sent Defendants a letter demanding that Ms. Buljan be released from the case. (*Id.*, ¶ 6.) On March 11, 2025, having received no response from Defendants, Ms. Buljan moved for summary judgment. (*Id.*, ¶ 8.) On March 25, 2025, after Ms. Buljan filed her motion for summary judgment, Defendants offered conditionally to dismiss Ms. Buljan from the underlying action. (*Id.*, ¶ 7.) The Court granted summary judgment in favor of Ms. Buljan on October 5, 2025, and judgement was entered in her favor on January 8, 2026. (*Id.*, ¶ 8.)

On January 23, 2026, Ms. Buljan filed the instant action for malicious prosecution against the Marigold Defendants and their attorneys, Daniel Chung, Stephen D. Pahl, Catherin S. Robertson, and Spencer Fane LLP (collectively, “Attorney Defendants”). Two weeks later, the Court in the underlying action dismissed Ms. Buljan’s cross-claims, upon her request. (Kittle Decl., ¶ 21, Ex. 20.)

On February 19, 2026, after her cross-claims were dismissed, Plaintiff mailed Notices of Acknowledgment to the Attorney Defendants. (See Notices of Acknowledgment, filed March 2, 2026.) On March 2, 2026, the Attorney Defendants signed the notices. (*Ibid.*) On March 25, 2026, the Attorney Defendants filed the instant Anti-SLAPP motion.

On March 24, 2026, Plaintiff served the Marigold Defendants with process by substituted service. (See Proofs of Service by Substituted Service, filed April 8, 2026.) On May 15, 2026, the Court entered default against the Marigold Defendants. (See Entry of Default, May 15, 2026.) Plaintiff served the Marigold Defendants with notice of her request for default. (See Proof of Service, filed May 15, 2026.)

On May 22, 2026, the Marigold Defendant filed an Anti-SLAPP motion substantively identical to the motion filed by the Attorney Defendants and stated that they “will and hereby do join in the Special

Motion to Strike.” (Notice of Special Motion to Strike and Joinder, May 22, 2026.) However, as addressed in a separate tentative ruling, because the Marigold Defendants are in default, their motion to strike and request for joinder is dismissed as improper.

Legal Standard

Pasternack v. McCullough, (2015) 235 Cal. App. 4th 1347 succinctly lays out the standard governing this motion as follows:

A special motion to strike triggers a two-stage inquiry: First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity. The moving defendant’s burden is to demonstrate that the act or acts of which the plaintiff complains were taken in furtherance of the defendant’s right of petition or free speech. Second, if the court finds such a showing has been made, it then determines whether the plaintiff has demonstrated a probability of prevailing on the claim.

A plaintiff establishes the requisite probability of success by stating and substantiating a legally sufficient claim. Put another way, the plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited. In deciding the question of potential merit, the trial court considers the pleadings and evidentiary submissions of both the plaintiff and the defendant; though the court does not *weigh* the credibility or comparative probative strength of competing evidence, it should grant the motion if, as a matter of law, the defendant’s evidence supporting the motion defeats the plaintiff’s attempt to establish evidentiary support for the claim.

A complaint for malicious prosecution is necessarily based on protected speech and petitioning activity. (*Id.* at 1354–55.) (quotations and citations omitted.)

Discussion

As the nature of this lawsuit satisfies the first step (protected speech), the Court moves on to the second step (probability of prevailing).

Courts “have described this second step as a summary-judgment-like procedure. The court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff’s evidence as true, and evaluates the defendant’s showing only to determine if it defeats the plaintiff’s claim as a matter of law. Claims with the requisite minimal merit may proceed.” (*Roche v. Hyde* (2020) 51 Cal. App. 5th 757, 787, as modified on denial of reh’g (July 29, 2020).) (quotations omitted)

“A cause of action for malicious prosecution consists of (a) the institution of an action at the direction of the defendant (b) without probable cause and (c) with malice, (d) termination of the initial action favorably to the plaintiff, and (e) resulting damage. Favorable termination is an essential element of the tort of malicious prosecution, and it is strictly enforced. The termination must reflect on the merits and be such that it tended to indicate the former defendant’s innocence of or lack of responsibility for the alleged misconduct. Indeed, the requirement of favorable termination confirms the plaintiff’s innocence, serves to

forestall unfounded claims and prevent inconsistent judgments, and facilitates proof of other elements of the tort.” (*Pasternack*, 235 Cal. App. 4th at 1355) (quotations and citations omitted).

Attorney Defendants attack the “without probable cause”, “malice” and “termination” elements.

As to the termination element, the Attorney Defendants make two arguments. First they argue that this element cannot be met because Plaintiff maintained a cross-complaint at the time this action was filed. While technically true, that cross-complaint was dismissed prior to this action being served or this motion being filed. Had Plaintiff dismissed this action and then refiled it after the dismissal of the cross-complaint, which she could easily have done, this argument would have been foreclosed. Deciding this motion in the Attorney Defendants’ favor solely on that basis would elevate form over substance. The *Pasternack* decision, on which the Attorney Defendants primarily rely, was explicitly premised on the fact that the cross-complaint remained pending. (*Pasternack*, 235 Cal. App. 4th at 1351.) (“When Pasternack filed his malicious prosecution complaint, **and when the special motion to strike was heard**, he was still pursuing a cross-complaint in the underlying action against some of the same defendants he claimed maliciously filed the complaint in the underlying action.”) There is no cross-complaint pending here and Attorney Defendants have cited no case that supports their position.

Next, Attorney Defendants argue that Plaintiff cannot establish the termination element because the underlying action remains pending. That is true. But they do not dispute that the underlying action does not remain pending as to **this** Plaintiff. And, the Court has been unable to find and Attorney Defendants have not cited any cases that hold that a Plaintiff must wait until a case is complete as to other parties before commencing suit for malicious prosecution. They cite language from *Pasternack*. But as already noted, *Pasternack* involved a pending cross-complaint. And the language cited by Attorney Defendants from *Pasternack* relies on two cases where the plaintiff still had pending claims (*Jenkins v. Pope* (1990) 217 Cal.App.3d 1292, 1299 (elimination of one claim); *Rich v. Siegel* (1970) 7 Cal.App.3d 465, 469 (partial summary judgment).) Attorney Defendants also cite *Fleuret v. Hale Constr. Co.* (1970) 12 Cal. App. 3d 227, 230 and *Call v. Alcan Pac. Co.* (1967) 251 Cal. App. 2d 442, 449. *Fleuret* and *Call* deal with the one final judgment rule as it applies to appealability and not whether a plaintiff need wait for resolution of a lawsuit involving other parties before filing a malicious prosecution action.

Attorney Defendants also contend that Plaintiff cannot demonstrate lack of probable cause. Plaintiff argues that there was no probable cause to prosecute the underlying action against her and that it was based solely on the fact that she was married to a defendant. Defendants counter that “Plaintiff does not—and cannot—dispute that naming a community property spouse in a lawsuit is established practice under *11601 Wilshire Associates v. Grebow*, 64 Cal. App. 4th 453, 456-57 (1998) and *Reynolds & Reynolds Co. v. Universal Forms, Labels & Systems, Inc.*, 965 F. Supp. 1392, 1396 (C.D. Cal. 1997). Indeed, Reynolds—the reasoning of which 11601 Wilshire imported wholesale—specifically found that it was ‘permissible to name both spouses in an action which determines community liability,’ including a ‘non-wrongdoing spouse.’” Reply at 5. But neither of those cases support naming an uninvolved spouse. In both those cases, the courts held that the plaintiff could not maintain an action against a spouse in every case solely on the basis of a co-spouse’s potential liability. And to the extent *Reynolds* does hold that, Plaintiff offers compelling arguments why Attorney Defendants cannot rely on *Reynolds*, including their maintenance of the underlying action and pursuit of discovery that at least arguably appeared targeted at establishing liability even after she requested that she be dismissed as well as their (ineffectively) opposing her motion for summary judgment.

Finally, Attorney Defendants argue the malice element. Plaintiff asserts that the complete lack of probable cause in filing (and continuing to pursue the actions without probable cause) creates an

inference of malice. That proposition has been endorsed by the Supreme Court and many other cases. (*Soukup v. L. Offs. of Herbert Hafif* (2006) 39 Cal. 4th 260, 296 (“Moreover, malice can also be inferred from the evidence that defendants lacked probable cause to initiate and maintain the underlying action against Soukup.”)). And it would appear to this Court that the more obvious the absence of probable cause, the stronger the inference. The Court in *Soukup* found that the showing of a lack of probable cause along with the concession of the defendant (in discovery) of a lack of involvement by the plaintiff and a failure to explain why the plaintiff was named in the underlying lawsuit (factors present here) (among other factors not present here) was sufficient to establish malice for the limited purpose of defeating a motion to strike. In addition, Plaintiff cites to discovery tactics that involved pursuing material that Attorney Defendants knew Plaintiff did not have (and did not relate to the community property interest the Attorney Defendant relied upon late in the case) and that were found by the Commissioner to “approach[] harassment”, including pursuing video footage from Plaintiff’s granddaughter’s nursery. The Court concludes that Plaintiff’s evidence taken in its entirety is sufficient to defeat the Attorney Defendant’s attack for the purposes of this Motion.

The Attorney Defendants rely on *Daniels v. Robbins* (2010) 182 Cal. App. 4th 204, 227. But that case involved less evidence than marshalled by Plaintiffs here, including the evidence of “knowledge the case lacked probable cause”. Plaintiffs also cite *Green Tree Headlands LLC v. Crawford* (2024) 97 Cal. App. 5th 1242, 1263 for the proposition that any alleged discovery abuse they are accused of could not support a finding of malice. But *Green Tree* was not addressing malice (it was addressing probable cause). And Plaintiff does not argue that the alleged discovery abuse (or any one factor) is sufficient alone to satisfy the malice showing for the purpose of defeating the motion. It is simply a piece of the puzzle. (*Compare id.* (“To the contrary, Roche (the malicious prosecution plaintiff in that case) has made a showing that Hyde (the attorney there who had Graves’s role here) had no objectively provable case at all, yet proceeded anyway.”) (quotations omitted.)). Defendant cites *Roche* for the proposition that there must be a “pattern of discovery misconduct”. What the Court found in *Roche* was that “the pattern of discovery misconduct and the manner in which it was carried out *solidify Roche’s showing* and make it sufficient to meet his prima facie burden on the issue of malice.” *Roche*, 51 Cal. App. 4th at 827 (emphasis added.) As in *Roche*, the Court concludes that Plaintiff’s evidence of needless and aggressive discovery (in *Roche* it was withholding discovery) despite late in the case contending that the only reason that Plaintiff was sued was related to her community property interest is a factor that supports Plaintiff’s showing.

Finally, Defendants note that its willingness to stipulate to dismissal “disproves” malice. It is certainly a fact that may undercut it, but, as Plaintiff notes—the offer was made only after Plaintiff filed for summary judgment (which Defendants, notably, practically conceded) and many months after Plaintiff first requested dismissal. And the offer was contingent.

In sum, the implication of Attorney Defendants’ argument is that it is normal and permissible to sue a knowingly uninvolved spouse and litigate against that spouse without limitation in any case where the co-spouse may be liable for damages that might come out of the community estate. The Court does not believe that to be the law.

For the foregoing reasons, the motion is DENIED.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

26-CIV-00570 ELIZABETH BULJAN VS. ERIC YUAN, ET AL.

LINE 7

ELIZABETH BULJAN
ERIC YUAN

BLAIR KITTLE
RACHEL K. IVANOWSKY

DEFENDANTS: ERIC YUAN, MARIGOLDYZP I LLC, HONGYU ZHANG AND SOLE MANAGING MEMBER OF MARIGOLDYZP I LLC'S SPECIAL MOTION TO STRIKE (SLAPP)

TENTATIVE RULING:

Defendants MarigoldYZP I, LLC, Eric Yuan, and Sherry Yuan (collectively, "Marigold Defendants") have moved for a special motion to strike Plaintiff Elizabeth Buljan's Complaint against them for Malicious Prosecution, and to join the anti-SLAPP motion of their co-defendants, who represented them in the underlying case.

On January 23, 2026, Ms. Buljan filed the instant action for malicious prosecution against the Marigold Defendants and their attorneys, Daniel Chung, Stephen D. Pahl, Catherin S. Robertson, and Spencer Fane LLP (collectively, "Attorney Defendants"). On February 6, 2026, the Court in the underlying action dismissed Ms. Buljan's cross-claims, upon her request. (Kittle Decl., ¶ 21, Ex. 20.)

On March 24, 2026, Plaintiff served the Marigold Defendants with process by substituted service. (See Proofs of Service by Substituted Service, filed April 8, 2026.) On May 15, 2026, the Court entered default against the Marigold Defendants. (See Entry of Default, May 15, 2026.)

On May 22, 2026, the Marigold Defendant filed an Anti-SLAPP motion identical to the motion filed by the Attorney Defendants and stated that they "will and hereby do join in the Special Motion to Strike." (Notice of Special Motion to Strike and Joinder, May 22, 2026.) The entry of default against the Marigold Defendants has not been set aside.

Generally speaking, co-defendants may validly join another defendant's anti-SLAPP motion in malicious prosecution case. (*See Barak v. The Quisenberry Law Firm* (2006) 135 Cal.App.4th 654, 661-62 [finding joinder proper where malicious prosecution defendant was in same relative position as co-defendant attorneys who represented him in underlying case].)

However, California Courts have consistently held that an entry of default terminates a defendant's right to take any further affirmative steps in the litigation, at least until the default is set aside in a proper proceeding. (*Garcia v. Politis* (2011) 192 Cal.App.4th 1474, 1479.)

The Court sees no basis to deviate from that rule here, where the Marigold Defendants in default seek to join the anti-SLAPP motion of the Attorney Defendants. (*See Balla v. Hall* (2021) 59 Cal.App.5th 652, 691 [finding that joining a motion is equivalent to filing one; affirming denial of a defendant's joinder to co-defendant's anti-SLAPP motion where he had previously stipulated to not filing an anti-SLAPP motion in exchange for setting aside default against him].)

Accordingly, the Marigold Defendant's Special Motion to Strike and Request for Joinder in the Attorney Defendants' Special Motion to Strike are DENIED.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.



POSTED: 3:00 PM